BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	Case No. 3:26-cv-07504-LJC **PLAINTIFF'S SECOND SET OF REQUESTS FOR ADMISSION TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)** Set No.: 2 (Fed. R. Civ. P. 26, 36) Judge: Hon. Lisa J. Cisneros

PLAINTIFF'S SECOND SET OF REQUESTS FOR ADMISSION TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)

TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM) AND ITS ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 36, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program) admit, in writing and under Rule 36, the truth of each matter below, and serve a written response on Plaintiff within thirty (30) days after service.

INSTRUCTIONS

1. Each matter is admitted unless, within 30 days after service, you serve a written answer or objection signed under Rule 26(g) (Fed. R. Civ. P. 36(a)(3)).

2. A denial must fairly respond to the substance of the matter; when good faith requires, specify the part admitted and qualify or deny only the rest (Rule 36(a)(4)).

3. You may assert lack of knowledge only if you state that you have made reasonable inquiry and that the information you know or can readily obtain is insufficient (Rule 36(a)(4)).

4. A party that fails to admit a matter later proved may be ordered to pay the reasonable expenses of proof (Rule 37(c)(2)).

DEFINITIONS

"YOU" and "YOUR" means Defendant HOPE as defined below.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states otherwise.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

The documents Bates-numbered HOPE_000001 through HOPE_000542 are true and correct copies of documents maintained by HOPE.

REQUEST FOR ADMISSION NO. 2:

The documents Bates-numbered HOPE_000139 through HOPE_000199 are records made at or near the time of the events they describe by persons with knowledge, kept in the course of HOPE's regularly conducted activity, as a regular practice of that activity.

REQUEST FOR ADMISSION NO. 3:

The document Bates-numbered HOPE_000225 through HOPE_000349 is HOPE's Clinical Operational Manual in effect on and after September 23, 2024.

REQUEST FOR ADMISSION NO. 4:

The page Bates-numbered HOPE_000294 is a genuine page of HOPE's Clinical Operational Manual.

REQUEST FOR ADMISSION NO. 5:

The statement on HOPE_000294 concerning HOPE's inability to discharge clients is attributable to the terms of HOPE's contract(s) with CDCR.

REQUEST FOR ADMISSION NO. 6:

The statement on HOPE_000294 concerning HOPE's inability to discharge clients reflected HOPE's policy at the STOCKTON SITE during 2024 and 2025.

REQUEST FOR ADMISSION NO. 7:

The page Bates-numbered HOPE_000295 accurately states HOPE's graduation criteria in effect on and after September 23, 2024.

REQUEST FOR ADMISSION NO. 8:

Under the criteria stated on HOPE_000295, a Treatment Completion Certificate cannot issue without approval by HOPE's Clinical Director.

REQUEST FOR ADMISSION NO. 9:

Under the criteria stated on HOPE_000295, a client's completion is recorded through an upload to a CDCR system.

REQUEST FOR ADMISSION NO. 10:

The pages Bates-numbered HOPE_000334 through HOPE_000335 accurately state HOPE's requirement for CTM notes in effect on and after September 23, 2024.

REQUEST FOR ADMISSION NO. 11:

HOPE has not produced in this action any CTM note concerning PLAINTIFF prepared under the requirement stated on HOPE_000334 through HOPE_000335.

REQUEST FOR ADMISSION NO. 12:

The addenda referenced on HOPE_000348 through HOPE_000349 exist in HOPE's possession, custody, or control.

REQUEST FOR ADMISSION NO. 13:

The document Bates-numbered HOPE_000189 is a genuine record of HOPE.

REQUEST FOR ADMISSION NO. 14:

SMITH received a copy of the communication described on HOPE_000189 on or about January 6, 2026.

REQUEST FOR ADMISSION NO. 15:

The "policy and procedure" referenced on HOPE_000189 is a written HOPE document.

REQUEST FOR ADMISSION NO. 16:

The document Bates-numbered HOPE_000538 through HOPE_000542 is a genuine job description for HOPE's Clinical Director position.

REQUEST FOR ADMISSION NO. 17:

HOPE's Clinical Director position was eligible for a performance bonus during 2024 and 2025.

REQUEST FOR ADMISSION NO. 18:

The Clinical Director's duties during 2024 and 2025 included auditing for compliance with HOPE's contractual requirements.

REQUEST FOR ADMISSION NO. 19:

HOPE moved PLAINTIFF to an evening group in or about April 2022 to accommodate his work schedule.

REQUEST FOR ADMISSION NO. 20:

HOPE approved a teletherapy modification for PLAINTIFF in or about April 2023.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona